

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NIELSEN & BAINBRIDGE, LLC, *Complainant*

v.

OCEAN NETWORK EXPRESS PTE. LTD., *Respondent*.

DOCKET NO. 25-30

Served: June 17, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER DENYING ONE’S UNOPPOSED SECOND MOTION TO EXTEND DEADLINE’S

On June 12, 2026, the parties filed a Joint Status Report and ONE’s Unopposed Second Motion to Extend Deadlines (“JSR and Motion”). Based on the current amended schedule, the joint status report is due June 17, 2026, and was filed early. Based on the Commission’s Rules, the motion was filed late. 46 C.F.R. § 502.102(a) (“Motions for enlargement or reduction of time for the filing of any pleading or other document...may be granted upon a showing of good cause. Motions must set forth the reasons for the request and be received at least seven (7) days before the scheduled filing date.”). Moreover, a motion should not be filed as part of a joint status report, as stated in the Initial Order: “[a]ny request for action by the Commission or presiding officer must be made by motion, not by letter or email request **or as part of a joint status report.**” Initial Order at 4 (emphasis added).

A 60-day extension of the remaining discovery and briefing deadlines was granted by order dated April 24, 2026, based on the volume of documents Respondent identified at that time as potentially responsive. *See* Amended Scheduling Order at 1-2. In that Order I noted that “it is concerning that Respondent has not started producing documents or ESI” and I ordered Respondent to begin rolling productions of documents and ESI as soon as possible, and no later than May 11, 2026.” Based on the parties’ JSR and Motion, Respondent has produced only 2,100 pages on May 8, 2026, and nothing since, despite the order for rolling productions. JSR and Motion at 3. Moreover, Respondent let the deadline to complete substantial production pass without either responding to Complainant’s emailed request for an update on production or informing me that it had encountered problems with its vendor and the use of AI which somehow slowed its production. *Id.* at 2, 4-5. Even after a meet and confer with Complainant on June 11, 2026, Respondent did not file this motion to extend time until after business hours on Friday, June 12, 2026.¹ *Id.* at 4-5.

¹ The April 24, 2026 Amended Scheduling Order admonished the parties for filing motions after hours: “While the motion is dated April 3, 2026, a Friday, it was filed at 8:34 pm. The parties should file motions—particularly those that impact scheduling order deadlines...during regular business hours.” Amended Scheduling Order at n. 1.

Respondent's request for an extension of time is excessive, especially in light of the previous extension request and lack of progress made pursuant to the April 24, 2026, order. The current schedule contemplates briefing ending on October 21, 2026, and Respondent seeks to extend the schedule to end briefing over two and a half months later, on January 14, 2027 (erroneously listed as a "current deadline" and "1/14/26"). JSR and Motion at 10. Respondent's proposed extension adds time between milestones that results in a gradual increase to over two and a half months (85 days) for final briefing. Good cause has not been established to increase the time between milestones in addition to adding 49 days to the document production deadline. Accordingly, Respondent's motion to extend is **DENIED WITHOUT PREJUDICE**. Respondent may refile a motion for an extension of time that addresses the problems identified in the current motion.²

Going forward, the following guidance is offered in terms of meeting scheduling deadlines. The parties stated in the JSR and Motion that they have disclosed as many as 64 fact witnesses from whom they might take testimony (50 identified by Complainant and 14 identified by Respondent, although the Complainant's number was provided prior to this proceeding being severed from 25-02). JSR and Motion at 5-6. The parties are reminded that they must seek leave of the presiding officer if a "deposition would result in more than 20 depositions being taken...by any party[.]" 46 C.F.R. § 502.143(a)(2)(i). I am unlikely to allow more than 20 depositions per party. Finally, while a party is entitled to use expert witnesses in its presentation of evidence, experts who address the calculations of reparations will be more useful to me than those who address liability.



Linda S. Harris Crovella
Administrative Law Judge

² Respondent is cautioned that citing to other administrative law judges' orders granting extensions of time in cases filed in 2022 and 2023, or even now, does not establish good cause in this case.